

Chapter A174

CABLE TELEVISION FRANCHISE

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[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 12-19-1994 by Ord. No. 675. Amendments noted where applicable.]

GENERAL REFERENCES

Cable television rate review — See Ch. 8.

§ A174-1. Adoption of SHACOG resolution.

The Borough of Baldwin hereby adopts SHACOG Board Resolution No. 04-94¹ and agrees to participate in the SHACOG Cable Television Franchising Program.

§ A174-2. Resolution to be binding upon Borough.

SHACOG Board Resolution No. 04-94 shall be binding upon the Borough of Baldwin as provided in that resolution until such time as Borough Council withdraws pursuant to the procedures established in SHACOG Resolution No. 04-94.

§ A174-3. Assignment of present franchise agreement.

The present cable television franchise agreement between TCI of Pennsylvania and its affiliate is hereby assigned, delegated and/or transferred to SHACOG, and all of the Borough's rights and responsibilities shall be assumed by SHACOG pursuant to SHACOG Resolution No. 04-94.

§ A174-4. Authority to sign agreement.

The appropriate municipal officers are authorized to sign the attached agreement² between SHACOG and the Borough of BALDWIN to participate in the SHACOG Cable Television Franchising Authority Program.

§ A174-5. SHACOG authorized to act on behalf of Borough.

SHACOG, through its Franchising Authority Board, is hereby authorized to act on behalf of the Borough of

1. Editor's Note: Res. No. 04-94 is on file in the office of the Borough Secretary.
2. Editor's Note: Said agreement is on file in the office of the Borough Secretary.

Baldwin within the confines of the Authority set forth in the attached agreement and SHACOG Resolution No. 04-94 for so long as the Borough participates in that process.

§ A174-6. Ratification of program transfer. [Added 11-20-2000 by Ord. No. 747]

- A. Ordinance No. 675 is hereby amended to ratify the decision to merge the TRCOG program into the SHACOG Telecommunications Franchising Authority Program.
- B. The Borough of Baldwin hereby adopts and agrees to be bound by the provisions of the SHACOG Telecommunications Franchising Authority Program as defined in SHACOG Board Resolution No. 02-97.

Chapter A175**TELEPHONE FRANCHISE**

§ A175-1.	Authority to construct, maintain and operate granted.	§ A175-6.	Maintenance required.
§ A175-2.	Height and location of poles; street openings.	§ A175-7.	Construal of provisions.
§ A175-3.	Submission of plans.	§ A175-8.	Compliance with other provisions.
§ A175-4.	Supervision; restoration.	§ A175-9.	When effective.
§ A175-5.	Use of poles by Borough.	§ A175-10.	Acceptance by company.
		§ A175-11.	Bond required.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 3-21-1957 by Ord. No. 124. Amendments noted where applicable.]

GENERAL REFERENCES

Streets and sidewalks — See Ch. 139.

§ A175-1. Authority to construct, maintain and operate granted.

Permission is hereby granted to the Bell Telephone Company of Pennsylvania, its successors and assigns to construct, maintain and operate its posts, poles, booths, telephones, conduits, ducts, pipes, mains, manholes, cables, wires and all necessary overhead and underground apparatus and appliances on, over, under and through the streets, alleys and highways within the present or future limits of the Borough of Baldwin, in the County of Allegheny and Commonwealth of Pennsylvania; to use the property of other companies and to permit other companies that possess authority to operate within the said Borough; and to use its property, upon such arrangements as the two companies may agree to, subject to the following provisions.

§ A175-2. Height and location of poles; street openings.

All poles erected by said company shall extend not less than 20 feet above the surface of the ground and shall be so located as in no way to interfere with the safety or convenience of persons traveling on or over the said streets, alleys and highways, and in the installation and maintenance of its underground system, said company shall not open or encumber more of any street, alley or highway than will be necessary to enable it to perform the work with proper economy and efficiency.

§ A175-3. Submission of plans.

Whenever the said company shall desire to erect, lay down or construct any booths, posts, poles, conduits or manholes, it shall present a plan or plans showing the location, number and size thereof to the Council of the Borough, who shall approve or disapprove the same as to location, which plan or plans, or copy thereof, with approval endorsed thereon shall be filed with the Borough Secretary before any work shown thereon is started. In case the said Council disapproves any plan or plans, it shall designate thereon, by the use of appropriate words or marks, or both, some other location suitable for the purposes of the said company.

§ A175-4. Supervision; restoration.

The erection of booths and poles and the construction of conduits and manholes under the provisions of this ordinance shall be subject to the supervision of the Council of the Borough, and said company shall replace and properly relay that portion of any sidewalk or street pavement which may have been displaced or damaged by it in the construction and maintenance of its system.

§ A175-5. Use of poles by Borough.

Space on the poles erected and in the conduit constructed under the provisions of this ordinance may be used, free of charge, for the purpose of carrying wires of any fire alarm or police telegraph system owned and maintained by the said Borough, provided that the said wires are placed and maintained in such a manner as may be prescribed by the said company, and that no use shall be made of such space by the said Borough which will result in interfering with or impairing the operation or use of the said company's property or service or will endanger its property or employees.

§ A175-6. Maintenance required.

The said company shall maintain all posts, poles, booths, telephones, cables, wires, conduits, ducts, mains, pipes, manholes and all other apparatus erected or constructed under the provisions of this ordinance in good and safe order and condition, and shall at all times fully indemnify, protect and save harmless the said Borough from and against all actions, claims, suits, damages and charges and against all loss and necessary expenditures arising from the erection, construction and maintenance of its system, or from its neglect or failure to maintain the said apparatus in good and safe order and condition.

§ A175-7. Construal of provisions.

Nothing contained in this ordinance shall be construed to grant unto the said company any exclusive right, or to prevent a grant of similar privileges to other companies, nor to conflict with the powers and jurisdiction now or hereafter vested by law in the Pennsylvania Department of Highways or its successors over certain highways or with any rules and regulations issued from time to time by the said Department or its successors governing the use of such highways by public service corporations.

§ A175-8. Compliance with other provisions.

The said company shall be governed by all legal ordinances of a general nature affecting its operations in the Borough of Baldwin that are now in force and enacted under and by virtue of the police powers of the said Borough or the laws of the commonwealth, as well as all such ordinances hereafter so enacted, provided that the terms, conditions and regulations prescribed therein do not impair or abridge the permission contained in this ordinance.

§ A175-9. When effective.

This ordinance shall take effect at the expiration of 30 days from the date when a copy thereof shall have been filed in the office of the Secretary of the Pennsylvania Public Utility Commission, provided that, if the Commission shall, prior to the expiration of such period, institute a proceeding under the provisions of Section 901 of the Public Utility Law affecting its validity, this ordinance shall become effective only upon approval by said Commission.

§ A175-10. Acceptance by company.

The said company shall, under its seal and by its proper officers, within 60 days from the date of the final enactment of this ordinance, signify in writing its acceptance of all the terms, conditions, regulations and restrictions herein contained, in default of which this ordinance shall become null and void and of no effect.

§ A175-11. Bond required.

The said company shall, at the time of filing its acceptance of this ordinance, also file its bond in the sum of \$10,000 conditioned for the faithful compliance with all and singular the terms, conditions, regulations and restrictions in this ordinance contained, and in default of so doing, this ordinance shall become null and void and of no effect, anything herein contained to the contrary notwithstanding; and said bond shall be in lieu of any bond or monetary deposits to ensure the replacement of highways which may be required by any general ordinance now in force or hereafter enacted.